

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA
COUNTY CIVIL

COLONIAL MANOR MHC HOLDINGS, LLC,
Plaintiff,

vs.

Case No.: 2024-CC- 2429

PEGGY REYNOLDS, LEATHA SHILLINGS,
JAMES ALAN O'CONNOR and ANY
UNKNOWN PARTY(s) IN POSSESSION,
Defendants.

**COMPLAINT SEEKING POSSESSION OF
RESIDENTIAL PREMISES AND DAMAGES**

Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, sues the Defendant(s), PEGGY REYNOLDS, LEATHA SHILLINGS, JAMES ALAN O'CONNOR and ANY UNKNOWN PARTY(s) IN POSSESSION, in possession of certain premises more fully described below, and alleges:

**COUNT I
ACTION FOR POSSESSION**

1. This is an action for removal of mobile home park lot tenants and possession of real property in Manatee County, Florida, as authorized by Section 723.061(1)(C)2 of Florida Statutes.
2. Plaintiff is a Foreign Limited Liability Company owning and operating a mobile home park located in Manatee County, Florida doing business as COLONIAL MOBILE MANOR.
3. Plaintiff owns the real property located at 900 9th Avenue East, Lot #152, Palmetto, Manatee County, Florida 34221.
4. Pursuant to Florida Statutes §723.031 residential rental agreements in mobile home parks, including that between the Defendants, PEGGY REYNOLDS and LEATHA SHILLINGS, and the Plaintiff, are annual.
5. Defendants, PEGGY REYNOLDS and LEATHA SHILLINGS, natural persons,

entered into a rental agreement to reside at 900 9th Ave East, Lot #152, Palmetto, Manatee County, Florida, 34221, owned by COLONIAL MANOR MHC HOLDINGS, LLC, known as COLONIAL MOBILE MANOR. A copy of the Lease Agreement is attached to this Complaint as Plaintiff's "Exhibit A".

6. Defendant, JAMES ALAN O'CONNOR, is the record owner of the mobile home located on the real property on 900 9th Ave East, Lot #152, Palmetto, Florida, 34221 and is a party to this eviction pursuant to provisions of the Florida Mobile Home Act, Chapter 723 of Florida Statutes.

7. Defendant(s), ANY UNKNOWN PARTY(s) IN POSSESSION, may reside on the real property at 900 9th Avenue East, Lot #152, Palmetto, Manatee County, FL 34221, Manatee County, but if so, do so without the consent of the Plaintiff.

8. When the Defendants, PEGGY REYNOLDS and LEATHA SHILLINGS, applied for and agreed to reside in COLONIAL MOBILE MANOR, they both agreed to abide by the Rules and Regulations of COLONIAL MOBILE MANOR.

9. In entering into a rental agreement with the Plaintiff, Defendants, PEGGY REYNOLDS and LEATHA SHILLINGS accepted the responsibility to abide by the Rules and Regulations of Colonial Mobile Manor.

10. Copies of the evidence of each of their agreements to abide by the Rules and Regulations are incorporated into this Complaint and attached to it as "Composite Exhibit B".

11. A copy of the Rules and Regulations of COLONIAL MOBILE MANOR accepted by the Defendants are incorporated into this complaint and attached as "Exhibit C".

12. The Defendants, PEGGY REYNOLDS and LEATHA SHILLINGS, violated the Rules and Regulations of COLONIAL MOBILE MANOR, specifically, Rule 3, by allowing additional occupants, not approved by park management, to reside with them in the premises of the mobile home on Lot #152.

13. As a result, on May 30, 2024, the Defendants PEGGY REYNOLDS, LEATHA

SHILLINGS and ANY UNKNOWN PARTY(s) IN POSSESSION were notified by certified mail, return receipt requested, and by posting, that they were in violation of Rule 3 and pursuant to that notice were provided seven (7) days to cure the violation by removing everyone who is not registered to reside in the premises of Lot #152 from the premises. A copy of the notice and certified proof of mailing are attached to this Complaint as Plaintiff's "Exhibit D".

14. On May 30, 2024, "Exhibit D" was also posted on 900 9th Avenue East, Lot #152, Palmetto, Manatee County, FL 34221 pursuant to Fla. Stat. §723.061.

15. Pursuant to Fla. Stat. § 723.061, the owner of the mobile home, JAMES ALAN O'CONNOR, on May 30, 2024, was also notified of the violation of the tenants by certified mail return receipt requested.

16. A copy of the notice and the certified mail to JAMES ALAN O'CONNOR is incorporated into this complaint and attached as "Exhibit E".

17. After providing more than the seven days of notice set forth pursuant to Fla. Stat. §723.061 to cure the violations described in paragraphs 12 and 13 of this Complaint, Defendants PEGGY REYNOLDS and LEATHA SHILLINGS did not cure the violation of Rule 3 of the Rules and Regulations of COLONIAL MOBILE MANOR.

18. As a result, on June 10, 2024, Plaintiff posted on the premises and sent by Certified Mail Return Receipt Requested, a notice of termination of the Defendants PEGGY REYNOLDS and LEATHA SHILLINGS right to reside on the premises, providing them 30 days to vacate the premises of 900 9th Avenue East, Palmetto, FL 34221, Lot #152. A copy of the Notice of Termination of Tenancy and proof of certified mail are attached hereto as Plaintiff's "Exhibit F".

19. Plaintiff also posted "Exhibit F" on the premises of Defendants on June 10, 2024.

20. Plaintiff also delivered "Exhibit F" to JAMES ALAN OCONNOR by certified mail return receipt requested to the address provided by him to the FLHSMV as his address. A copy of the certified mail return receipt requested for "Exhibit F" is incorporated into this Complaint as "Exhibit

G".

21. As of the date of the filing of this Complaint, the Defendants, PEGGY REYNOLDS and LEATHA SHILLING, have not complied with the Rules and Regulations of COLONIAL MOBILE MANOR Rule 3, and have continued to allow unapproved and additional residents to reside on the premises of Lot #152.

22. Plaintiff has not accepted rent since the date that the Defendants failed to correct violations of park rules and regulations as stated herein.

23 Pursuant to Section 723.068 of Florida Statutes, Plaintiff is entitled to an award of costs and attorney fees arising out of the action

24. Pursuant to Section 723.061(3) of Florida Statutes, Plaintiff is entitled to summary procedure set forth in Fla. Stat. 51.011.

25. JAMES ALAN O'CONNOR has no right to possession of or to reside in Lot #152 of Colonial Manor, at 900 9th Avenue East, Palmetto, Florida 34221.

WHEREFORE, Plaintiff requests this Honorable Court enter a judgment for possession of the premises together with costs and reasonable attorney's fees against Defendants, PEGGY REYNOLDS, LEATHA SHILLINGS, JAMES ALAN O'CONNOR and ANY UNKNOWN PARTY(IES) IN POSSESSION, and such other and further relief as the Court may deem proper.

COUNT II
ACTION FOR DAMAGES (RENTAL)

26. This is an action seeking less than \$30,000.00 excluding costs, interest and attorney fees.

27. Plaintiff re-alleges the facts contained within paragraphs 1 through 25 as though fully set forth herein.

28. Plaintiff, as landlord, leased to Defendants, PEGGY REYNOLDS and LEATHA SHILLINGS, Lot #152, 900 9th Avenue East, Palmetto, FL 34221 of the above stated mobile home park at a monthly rental fee of \$771.15.

29. Plaintiff has suffered damages for unpaid rent, court costs and a reasonable attorney fee arising out of the prosecution of this action.

30. Plaintiff has retained the undersigned counsel to represent it in this action and has agreed to pay it a reasonable fee for its services.

WHEREFORE, Plaintiff requests this Honorable Court enter a judgment against Defendants, PEGGY REYNOLDS and LEATHA SHILLINGS, for damages, costs, attorney fees and a reservation of remedies.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Complaint Seeking Eviction and Damages has been furnished to a private process server for service upon the Defendants, PEGGY REYNOLDS, LEATHA SHILLINGS and ANY UNKNOWN PARTY(s) IN POSSESSION at their last known address of 900 - 9th Avenue East, Lot #152, Palmetto, Florida, 34221 and JAMES ALAN O'CONNOR at 5116 8th Street E, Bradenton, FL 34203, on this 17th day of July, 2024.

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